**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-III**

**Item No.103**

**CAA -5 (ND) 2023**

**IN THE MATTER OF:**

Spack Automotive Pvt. Ltd. **.....** Applicant No. 1

**Versus**

Gatorcorp Automotives Pvt. Ltd. **.....** Applicant No. 2

**SECTION**
**U/s 230 - 232** **Order pronounced on 25.07.2023**

**CORAM:**

**SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)**
**SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**
For the Applicant :
For the Respondent :

**ORDER**

Order pronounced in open court vide separate sheets.

CAA – 5 (ND) 2023 stands ***allowed***.

**SD/-**
**(ATUL CHATURVEDI)**
**MEMBER (TECHNICAL)**

**SD/-**
**(BACHU VENKAT BALARAM DAS)**
**MEMBER (JUDICIAL)**

**IN THE NATIONAL COMPANY LAW TRIBUNAL**

**NEW DELHI BENCH**

**COURT – III**

Under Section 230 – 232 and other applicable provisions of Companies Act, 2013 read with Companies (Compromises, Arrangement and Amalgamations) Rules, 2016.

## CA (CAA) No - 5/ND/2023

## IN THR MATTER OF SCHEME OF ARRANGEMENT BETWEEN

**SPACK AUTOMOTIVES PRIVATE LIMITED**

APPLICANT NO. 1/ DEMERGED COMPANY

**AND**

**GATORCORP AUTOMOTIVES PRIVATE LIMITED**

APPLICANT NO. 2 / RESULTING COMPANY

**AND**

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Pronounced On: 25.07.2023

**Coram:**

**Shri Bachu Venkat Balaram Das**

Hon'ble Member (Judicial)

**Shri Atul Chaturvedi**

Hon'ble Member (Technical)

**Present**:

For the Applicant: - Mr. Divyam Agarwal, Advocate

**O R D E R**

**Per: ATUL CHATURVEDI, MEMBER (TECHNICAL)**

1. This is a 1st Motion Petition filed jointly on behalf of 2 Applicant companies seeking approval of this Tribunal for the scheme for Arrangement under section 230 and 232 of the Companies Act, 2013 read with Rules 3 & 5 of the Companies (Companies (Compromises, Arrangement and Amalgamations) Rules, 2016 in respect of these Applicant companies.

2. The Board of Directors of the Applicant Company No. 1 / Demerged Company and Applicant Company No. 2 / Resulting Company have approved the scheme of Arrangement and same was approved vide Board Resolutions marked as Annexure A – 6 and Annexure A – 18 and the copy of these resolutions passed have been placed on record by the Applicant companies.

3. We have heard Ld. Counsel appearing for the Applicant Companies. It has been represented that the registered office of both the Applicant Companies is situated in New Delhi and therefore the subject matter of the instant Application falls within the jurisdiction of this Tribunal. Ld. Counsel has given the brief description of the Applicant Companies.

4. **SPACK AUTOMOTIVES PRIVATE LIMITED** (APPLICANT NO.1)

i. Spack Automotives Private Limited, a private limited company was incorporated under the Companies Act, 1956, with CIN U34101DL1991 PTC043570 and PAN AAACD0814C, having its registered office at 1st Floor, 45, Okhla Industrial Estate Phase- Ill, New Delhi 110020. The Authorised Share Capital of the Company is Rs. 8,00,00,000/- and Paid-up Capital is Rs. 4,92,44,000/-.

ii. As regards to the Applicant Company No. 1 it is observed that all the shareholders of the demerged company, representing 100% in number and 100 % in value have given their consent and approval to the scheme. The consent affidavit of equity shareholders has been annexed with the application. There are 3 secured creditors of Applicant No. 1 have given their consent for seeking dispensation from convening of the meeting of the secured creditors of Applicant Company No. 1. The consent affidavits of all 3 secured creditors of the Applicant Company No.1 have been annexed with the application as Annexure A-11. There are 144 unsecured Creditors in the Applicant Company No. 1 out of 144 unsecured creditors 139 have given their consent amounting to 96.528% and given their consent to the Applicant Company No.1 for seeking dispensation from convening the meeting of unsecured creditors. The consent affidavits of all 139 unsecured creditors of Applicant No. 1 have been annexed with the Application.

5. **GATORCORP AUTOMOTIVES PRIVATE LIMITED** (APPLICANT NO. 2)

i. Gatorcorp Automotives Private Limited was incorporated under the provisions of the Companies Act, with corporate identification number U341OODL2022PTC400805 and PAN AAJCG8747Q. It has its registered office at 45, 1st Floor, Okhla Industrial Estate, Phase Ill, New Delhi 110020. The Authorised Share Capital of the Company is Rs. 10,00,000/- and Paid-up Capital is Rs. 2,00,000/-.

ii. As regards to the Applicant Company No. 2, all equity shareholders representing 100 % in value have given their written consent to the scheme. The consent affidavits have been annexed with the application. Applicant Company No. 2 it is observed that there are no secured creditor in the Applicant Company No. 2. It is further observed that there are no unsecured creditors in Applicant Company No. 2.

6. Ld. Counsel appearing for the Applicant Companies has prayed for dispensation with the requirement of convening meetings of equity shareholders, secured creditors and unsecured creditors of Applicant Company No. 1 and Applicant Company No. 2.

7. We have perused the application and connected documents/ papers filed therewith including the Scheme of Arrangement contemplated between the Applicant companies.

8. It is further noted that, this Adjudicating Authority passed an order dated 31.01.2023 wherein this Adjudicating Authority appointed Mrs. Shraddha Deshmukh as a Court Commissioner in the captioned matter to verify the documents and passed direction to submit a report on the same. We have perused that report and found that the Applicant Companies have complied with all requirements as provided under section 230 to 232 of the Companies Act, 2013. In light of above findings we allow the prayer for the dispensation of meetings of equity shareholders, secured creditors and unsecured creditors of the Applicant Companies.

9. The Application CA (CAA) – 5 (ND) 2023 stands ***allowed***.

**SD/-**
**ATUL CHATURVEDI**
**MEMBER (TECHNICAL)**

**SD/-**
**BACHU VENKAT BALARAM DAS**
**MEMBER (JUDICIAL)**